

(03)

Tentative Ruling

Re: ***Bouloutian v. American Honda Motor Co., Inc.***
Case No. 24CECG04538

Hearing Date: June 16, 2026 (Dept. 403)

Motion: Plaintiff's Motion to Compel Further Responses to Request for Production of Documents

Tentative Ruling:

To deny plaintiff's motion to compel further responses to request for production of documents, as plaintiff did not file a request for pretrial discovery conference or obtain leave of court to bring the motion. (See Fresno Sup. Ct. Local Rules, rule 2.1.17 A.)

Explanation:

Under the Fresno Superior Court Local Rules, rule 2.1.17 A, "No motion under sections 2017.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request has either been denied and permission to file the motion is granted via court order or the discovery dispute has not been resolved as a result of the Conference and permission to file the motion is expressly granted."

However, "[t]his rule shall not apply the following: 1. Motions to compel the deposition of a duly noticed party or subpoenaed person(s) who have not timely served an objection pursuant to Code of Civil Procedure section 2025.410; 2. Motions to compel initial responses to interrogatories, requests for production and requests for admissions; 3. Motions to quash or compel compliance regarding a subpoena served on a nonparty; and 4. Motions to compel compliance with initial disclosures." (Fresno Sup. Ct. Local Rules, rule 2.1.17 A 1-4, para. breaks omitted.)

Here, plaintiff has brought a motion to compel further responses to document requests, so she needed to first file a request for pretrial discovery conference regarding the dispute and obtain leave of court before filing the motion. However, she did not file a pretrial discovery conference request, nor did the court grant leave to file the motion. Therefore, the motion is not properly before the court, and the court intends to deny it without considering its merits.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/15/26.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Matuszewicz v. Phenos Collective, Inc. et al.***
Superior Court Case No. 24CECG04227

Hearing Date: June 16, 2026 (Dept. 403)

Motions (x2): 1) By Plaintiff Morgan Matuszewicz to Compel Defendant East Bay HC Resource's Response to Special Interrogatories, Set Two, and Request for Sanctions;
2) By Plaintiff Morgan Matuszewicz to Compel Defendant East Bay HC Resource's Response to Requests for Production of Documents, Set Two, and Request for Sanctions;

Tentative Ruling:

To deny, without prejudice, plaintiff Morgan Matuszewicz's motions to compel defendant East Bay HC Resource's response to Special Interrogatories, Set Two, and Requests for Production of Documents, Set Two. (Code Civ. Proc., §§ 1011, 1013a, & 1013b.)

Explanation:

Plaintiff Morgan Matuszewicz ("Plaintiff") moves to compel initial responses from defendant East Bay HC Resource ("Defendant") for Plaintiff's Special Interrogatories, Set Two and Plaintiff's Requests for Production of Documents, Set Two (collectively "Set Two")¹.

The evidence required for an order compelling initial responses is that the discovery was properly served, and that no responses were received by the due date. While this is not an express requirement, attaching copies of the discovery served, including the proof(s) of service, is the standard method of proving service on a motion to compel. Here, copies of the discovery requests have been attached to counsel's declaration without the proofs of service. Counsel's declaration stating the date of service does not include the information required by statute to prove service. (See Code Civ. Proc., § 1011, 1013a, & 1013b.) Counsel's declaration does not even identify how service was completed. Accordingly, the motions to compel are denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

¹ The court notes that Plaintiff filed two motions, but paid one filing fee. If Plaintiff intends to refile the motions, filing fees in the appropriate amount must be paid in advance of the hearing.

